

February 24, 2024 is consistent with Code of Civil Procedure section 664 which requires the clerk of the court to enter judgment "in conformity to the decision of the court, immediately upon the filing of such decision." (Code Civ. Proc. § 664(a).) Plaintiff's malpractice-based claims accrued, and she suffered actual injury, when judgment was entered against her on February 20, 2024 under the foregoing case authority. Plaintiff alleges other facts that support that Plaintiff suffered actual and appreciate harm and damages before February 20, 2024. (FAC ¶¶ 3, 23-25 [defendants allegedly contacted Plaintiff's expert witness on July 18, 2023, they withdrew on July 25, 2023, and Plaintiff was forced to hire a new expert witness with trial held in December 2023, suggesting she suffered damages for the cost of the new expert by December 2023] and FAC ¶¶ 32-34 [defendants' attorney-client relationship terminated in July 2025, and they failed to timely return the retainer and unearned fees when the relationship terminated, suggesting she suffered actual harm and damages at that time].)

Nevertheless, the filed February 20, 2024 Statement of Decision and Judgment entered in the Kim Action is an "adverse judgment" under *Laird* and "actual injury" under *Jordache* sufficient to commence the statute of limitations not later than that date. Even if subsequent "judgments" were entered in the case based on the Statement of Decision and Judgment entered on February 20, 2024, Plaintiff cites no authority that would not make the statute of limitations commence based on entry of the Statement of Decision and Judgment on February 20, 2024 under *Laird*, *Jordache*, and the actual injury provision of Code of Civil Procedure section 340.6(a).

#### **Conclusion and Denial of Leave to Amend**

Based on Plaintiff's own allegations and the February 20, 2024 Statement of Decision and Judgment of which the Court takes judicial notice, the complaint "clearly and affirmatively" demonstrates that the claims alleged by Plaintiff are barred by the statute of limitations which accrued no later than February 20, 2024. (*Committee for Green Foothills, supra*, 48 Cal.4th at 42; *Lee v. Hanley, supra*, 61 Cal.4th at 1232.) Plaintiff commenced this action in June 2025, months after the one-year statute of limitations of Code of Civil Procedure section 340.6 had expired. Plaintiff was given an opportunity to try to amend her original complaint to state claims not barred by the statute of limitations. Plaintiff failed to do so. While she asks for leave to amend if the demurrer is sustained, she assert only that she can "provide additional specificity without altering the underlying claims." (Opp. p. 10, ll. 16-17.) The flaw in the FAC is not the lack of specific allegations; the specific allegations in the FAC show her claims are barred by the statute of limitations. The demurrer to the FAC is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

6. 9:00 AM CASE NUMBER: C25-02761  
CASE NAME: INGRID MARROQUIN VS. CHINA WALL BUFFET INC.,  
\*HEARING ON MOTION IN RE: SET ASIDE DEFAULT AS TO TARA KUMAR PURSUANT TO CCP 473  
FILED BY: KUMAR, TARA  
**\*TENTATIVE RULING:\***

Defendant Tara Kumar ("Defendant") filed a motion to set aside default on March 6, 2026 (the "Motion re Default"). The Motion re Default was set for hearing on July 6, 2026.

#### **Background**

A responsive pleading to plaintiffs Ingrid Marroquin, Clint Garcia, and Araceli Garcia (collectively, "Plaintiffs") Complaint was due January 2, 2026. See Memorandum of Points and Authorities filed March 6, 2026 as part of Motion re Default ("MPA"), p. 3. Defendant did not file a response by that date. *Id.* A default was then entered against Defendant and in favor of Plaintiffs on March 3, 2026. MPA, p. 3; see also Request to Enter Default filed March 3, 2026. Defendant subsequently filed the Motion re Default on March 6, 2026 asserting that a calendaring error by counsel prevented filing of the responsive pleading. See MPA, p. 3. The Proof of Service dated March 6, 2026 attached to the Motion re Default reflects service on Plaintiffs' counsel.

The Motion re Default is unopposed.

#### Analysis

Defendant is seeking mandatory relief from a default that was entered due to attorney error. A default must be vacated when the defendant's motion is (1) filed within six months after entry of default, (2) supported by an attorney's affidavit attesting to the attorney's mistake, (3) accompanied by the proposed responsive pleading, and (4) accompanied by a supporting memorandum. See Code Civ. Proc. § 473(b); Cal. Rules of Court, rule 3.1113(a). Where the statutory requirements are met, a trial court does not have discretion to refuse relief unless the court finds that the default was not caused by the attorney's mistake. See *Talbott v. Ghadimi* (2025) 109 Cal.App.5th 967, 977. Section 473 is to be construed liberally, and any doubts in its application should be resolved in favor of the party seeking relief. See *Maynard v. Brandon* (2005) 36 Cal.4th 364, 371-372.

Here, Defendant filed the Motion re Default three days after the entry of default. This is well within the six-month deadline. Additionally, the Motion re Default is supported by a declaration by Defendant's counsel, supporting memorandum, and proposed answer. See MPA; Declaration of Melanie D. Popper filed March 6, 2026 as part of Motion re Default, and **Exhibit A** thereto (including Proposed Answer to Complaint). The evidence demonstrates that the mistake was the result of attorney error, and mandatory relief applies pursuant to Code of Civil Procedure section 473(b). As such, the Motion re Default is GRANTED.

#### Disposition

The Court hereby finds and orders as follows:

1. The Motion to Set Aside Default is GRANTED.
2. A responsive pleading shall be filed and served within ten (10) calendar days from notice of entry of this order.
3. Moving party to prepare the order after hearing.

**7. 9:00 AM CASE NUMBER: C25-02766**  
**CASE NAME: HARTLEY HANSEN VS. KNIGHTSEN ELEMENTARY SCHOOL DISTRICT**  
**\*HEARING ON MINOR'S COMPROMISE AS TO HARTLEY HANSEN**  
**FILED BY: HANSEN, HARTLEY**  
**\*TENTATIVE RULING:\***

Plaintiff Hartley Hansen, by and through the duly appointed guardian ad litem herein, Erik Hansen, filed a Petition for Approval of Compromise of Claim on or about May 4, 2026 (the "Minor's Compromise")